



Lord Chancellor (Tenure of Office and Discharge of Ecclesiastical Functions) Act 1974

1974 CHAPTER 25

An Act to declare the law relating to the tenure of the office of Lord Chancellor by Roman Catholics and to make provision for the exercise of ecclesiastical functions during any tenure of the office of Lord Chancellor by Roman Catholics. [9th July 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the avoidance of doubt it is hereby declared that the office of Lord Chancellor is and shall be tenable by an adherent of the Roman Catholic faith.

Declaratory provision as to office of Lord Chancellor.

2. In the event of the office of Lord Chancellor being held by an adherent of the Roman Catholic faith it shall be lawful for Her Majesty in Council to make provision for the exercise of any or all the visitational or the ecclesiastical functions normally performed by the Lord Chancellor, and any patronage to livings normally in the gift of the Lord Chancellor, to be performed by the Prime Minister or any other Minister of the Crown.

Provision for alternative exercise of functions normally performed by Lord Chancellor.

3. This Act may be cited as the Lord Chancellor (Tenure of Office and Discharge of Ecclesiastical Functions) Act 1974.

Short Title.